	NON-DISCLOSURE AGREEMENT AND CONFIDENTIALITY CONTRACT	
	Document no: ASMF4.3.1	
Compiled by:	**Sifiso Nyambi - Laboratory Manager**	
Approved by:	**Nonhlanhla Msibi - Operations Manager**	

1 PARTIES

1.1 This contract is entered into between:

1.1.1 Azuresky Pty Ltd Reg. No. 2024/223777/07 (“Organisation”), and

1.1.2 ___ _____(the “Employee”), employee number

____, Employee as at the date of signature of this contract.

2 DEFINITIONS

2.1 In this contract the following terms have the following meanings:

2.1.1 “**Confidential Information**” includes:

2.1.1.1. technical, commercial or financial information,

2.1.1.2. know-how, trade secrets or other intellectual property,

2.1.1.3. processes, machinery, designs, drawings, technical specifications and data,

relating to the Proficiency Testing scheme and Reference Material Production, in whatever form and interpreted in the widest possible sense, and which information is contained in any documentation relating to the Proficiency Testing scheme and Reference Material Production, whether such information is formally designated as confidential or not, and excludes Confidential Information that is;

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2.1.1.4. known to, or in the possession of the Employee, prior to disclosure through the Project, in circumstances that do not amount to a breach of the provisions of this contract,

2.1.1.5. or becomes publicly known, otherwise than as a result of a breach of this contract by the Employee,

2.1.1.6. developed independently of the Proficiency Testing Scheme and Reference Material Production by the Employee in circumstances that do not amount to a breach of the provisions of this contract,

2.1.1.7. disclosed by the Employee to satisfy a valid order of court or to comply with the provisions of any law or regulation in force from time to time. In these circumstances, the Employee must advise Azuresky' Managing Director so that he/she can take whatever steps it deems necessary. The Employee can disclose only that portion of the Confidential Information which it is legally required to disclose.

2.1.1.8. received from a third party in circumstances that do not result from or in a breach of the provisions of this contract.

2.1.2 "**Project**" means the evaluation, negotiation and any other consideration of all procurement documentation generated, and the tenders submitted in response to tender name and number for the provision of services provided by Azuresky Pty Ltd.

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3 PROTECTIONS OF AND RESTRAINT ON USE OF CONFIDENTIAL INFORMATION

3.1 During the Project, the Employee will become aware of and have access to Confidential Information.

3.2 The Employee must not disclose to any other person, or make use of for his or her benefit or that of any other person, whether directly or indirectly, any Confidential Information related to the Project, without the prior written consent of Azuresky, save where such a person is also a participant in the Project and has signed a non-disclosure contract similar in all material respects to this contract.

3.3 The Employee must protect Confidential Information related to the Project and handle and store such information so as to prevent any unauthorised disclosure.

3.4 The Employee cannot keep Confidential Information and whenever required to do so, and in any event when leaving Azuresky's employment, must return all Confidential Information relating to the Project.

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4 DURATIONS

This contract comes into effect on the date that the Employee first has access to Confidential Information related to the Project and Proficiency Testing Scheme and Reference Material Production will remain in force for a period as stated on tender documents to which the Project pertained, and for the processes of Azuresky business irrespective of whether the Employee is or is not employed by Azuresky during this period.

5 GENERALS

5.1 This contract contains the entire agreement between the parties with regard to the subject matter hereof.

5.2 A waiver, amendment or early cancellation of this a contract will only be effective if reduced to writing and signed by or on behalf of the parties.

5.3 In the event that the Employee breaches this contract and fails to remedy such breach within seven days from the date of a written notice to do so, or where such breach cannot be remedied, Azuresky may invoke all remedies available to it in law.

5.4 This contract replaces any similar contract previously signed by the Employee in respect of the Project.

5.5 The Employee must not make or issue any announcement or statement to the press or any other party in connection with the Project, and or Azuresky processes of production. Initial:

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Signed at _____ on _____.

_____

Employee [signature]

Signed at _____on _____.

_____ [Full name and surname on behalf of Azuresky]

_____ [Obo Azuresky to sign]

On behalf of Azuresky, who through signature warrants his or her authority to sign

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Effective date	Rev status	Next review date
07/2025	00	07/2028